

MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding (MOU) is made and entered into by and between the City of Cheyenne, a municipal corporation organized and existing under the laws of the State of Wyoming (“City”), located at 2101 O’Neil Avenue, Cheyenne, Wyoming 82001, and those certain landowners identified on the signature pages hereto (collectively, the “Landowners”). Each landowner executing this MOU, whether on the same or separate signature page, shall be deemed a Party hereto with respect only to the parcel(s) owned by such landowner. The City and the Landowners may be referred to individually as a “Party” and collectively as the “Parties.” This MOU shall become effective upon the date of the last signature affixed hereto.

RECITALS

WHEREAS, pursuant to Wyo. Stat. § 15-1-404, the City intends to annex an unincorporated area of land that lies entirely within the boundaries of the City (herein referred to as a “County Pocket”), as generally described as unincorporated lands within the area bounded by Storey Boulevard on the north, Converse Avenue on the east, Dell Range Boulevard on the south, and Powerhouse Road on the west.

WHEREAS, pursuant to Wyo. Stat. § 15-1-412, lands situated entirely within the boundaries of a city or town may be annexed without the written consent of the landowner;

WHEREAS, the Landowners, own multiple parcels located within the County Pocket and support the City’s intent to annex said parcels nonetheless;

WHEREAS, the County Pocket has historically been used for livestock grazing and related agricultural activities dependent on precipitation and vegetative growth (herein referred to as “Agricultural Use”);

WHEREAS, the City acknowledges that such Agricultural Use may vary in intensity from year to year based on natural conditions, and that periods of inactivity may occur due to weather-dependent factors rather than cessation of use;

WHEREAS, the City further recognizes that the Agricultural Use has been active within the year preceding this MOU and that the Landowners intend to continue such use before and after annexation initiated pursuant to Wyo. Stat. § 15-1-404;

WHEREAS, the Parties acknowledge that the City’s *AG – Agricultural* zoning district permits Agricultural Use, and that if a different zoning district is applied upon annexation, such Agricultural Use shall be allowed to continue as a lawful nonconforming use in accordance with Wyo. Stat. § 15-1-410(a);

WHEREAS, the Parties understand and agree that the annexation of the County Pocket is being initiated by the City and that the City shall be responsible for the associated annexation mapping and processing costs;

AGREEMENT

NOW, THEREFORE, in consideration of the foregoing recitals, which are hereby incorporated into and made a part of this MOU, the Parties agree as follows:

1. Recitals Incorporated. The foregoing recitals are incorporated herein by reference and made a substantive part of this MOU as though fully set forth herein.
2. Purpose. The purpose of this MOU is to memorialize the Parties' mutual understanding regarding the annexation of the County Pocket into the corporate limits of the City of Cheyenne and the continuation of existing Agricultural Use upon annexation.
3. Term. This MOU shall commence on the last date executed by the duly authorized representatives of the Parties to this MOU and shall remain in full force and effect for so long as the Landowners continue to hold ownership of any of the parcels described herein as the County Pocket. Notwithstanding any provision of this MOU, the Parties acknowledge and agree that all actions taken pursuant hereto are subject to and shall comply with the applicable requirements of Title 15 of the Wyoming Statutes and the Cheyenne Unified Development Code, as the same may be amended from time to time. Nothing in this MOU shall be construed to create a vested right, to confer any entitlement inconsistent with state or local law, or to limit or impair the City's lawful exercise of its zoning, land-use, or regulatory authority.
4. Payments. Neither Party shall have any obligation to make any payment or reimbursement to each other of any kind to the other Party under this MOU.
5. Responsibilities of the City. The City shall:
 - a. Include the County Pocket in the annexation process initiated pursuant to Wyo. Stat. § 15-1-404;
 - b. Execute all necessary contracts for annexation of the County Pocket.
 - c. Initiate and process annexation proceedings pursuant to Wyo. Stat. § 15-1-404; and
 - d. Acknowledge and allow the continuation of Agricultural Use on the annexed properties in accordance with Wyo. Stat. § 15-1-410(a) and subject to the applicable requirements or limitations referenced in Section 3, above.
 - e. City staff will recommend that the annexed properties be initially zoned AG – Agricultural, consistent with their existing use and the provisions of this MOU.
6. Responsibilities of Landowners. Landowners consent to, and hereby acknowledge and affirm their support for, the annexation of the properties described herein and shall cooperate fully with the City in providing all information and documentation necessary to complete annexation proceedings.

7. General Provisions.

a. Amendments. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon by the Parties to this MOU shall be incorporated by written instrument, executed, and signed by all Parties to this MOU.

b. Assignment. No Party may assign or transfer the responsibilities or agreements made herein without the prior written consent of the non-assigning Party, which consent shall not be unreasonably withheld.

c. Applicable Law. The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this MOU and the Parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.

d. Compliance with Laws. The Parties shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this MOU.

e. Responsibility for Conduct. Each Party shall be responsible for its own acts, errors, and omissions, and those of its officers, agents, and employees, to the extent provided by law. Nothing in this MOU shall be construed to create any duty, obligation, or liability of one Party for the acts, errors, or omissions of the other. Each Party shall bear its own costs, claims, and expenses arising out of its performance of this MOU, subject to applicable law and the availability of appropriated funds.

f. Nondiscrimination. The Parties shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105, *et seq.*, the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in connection with the performance under this MOU.

g. Governmental Immunity. The City does not waive governmental immunity by entering into this MOU and specifically retains all immunities and defenses available to it as a governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws. Designation of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity.

h. Third-Party Beneficiary Rights. The Parties do not intend to create in any other individual or entity, the status of third-party beneficiary and this MOU shall not be construed so as to create such status. The rights, duties, and obligations contained in this MOU shall operate only between the Parties to this MOU and shall inure solely to the benefit of the Parties to this MOU.

i. Force Majeure. The performance of this MOU by the Parties shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID- 19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the Parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this MOU. This MOU may be cancelled by any Party, without liability, damages, fees, or penalty for any one or more of the above reasons, by written notice to the other Party.

j. Severability. If any provision of this MOU is found to be invalid or unenforceable for any reason, the remaining provisions will continue to be valid and enforceable. If a court finds that any provision of this MOU is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision will be deemed to be written, construed, and enforced as so limited.

k. Notice. All notices arising out of or from the provisions of this MOU shall be in writing and given to the Party either by regular mail or delivery in person.

l. Termination. Any party may terminate its participation in this MOU, with or without cause, by providing thirty (30) days' written notice to the other Party.

m. Prior Approval. This MOU shall not be binding upon the Parties, no services shall be performed under the terms of this MOU, and no payments shall be made until this MOU has been reduced to writing and approved by all necessary authorities.

n. Counterpart Signatures. This MOU may be executed in counterparts, each of which shall be deemed an original, and signatures transmitted electronically shall have the same force and effect as original signatures.

o. Entirety of Contract. This MOU represents the entire and integrated agreement between the Parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

[SIGNATURES ON FOLLOWING PAGES]

IN WITNESS WHEREOF, the Parties to this MOU, through their duly authorized representatives, have executed this MOU on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this MOU.

CITY OF CHEYENNE:

Date

By: _____
Patrick Collins, Mayor

(SEAL)

Attest:

Kylie Soden, City Clerk

[LEFT INTENTIONALLY BLANK]

Parcel Identification Number(s):

Landowner / Entity Name: Edward G. Cole Living Trust
Mailing Address: 2357 Plain View Rd., Cheyenne, WY 82009

☐ Individual Owner ☐ Authorized Representative of Entity/Trust

ACKNOWLEDGMENT

This instrument was acknowledged before me on this _____ day of _____, 2025,
by _____, who produced satisfactory evidence of identity,
☐ as an individual, or ☐ as _____ (title) of
_____ (entity name and type, e.g., Section 20 LLC or the Lester L. and Ann
M. Cole Revocable Living Trust), on behalf of said entity or trust.

My Commission Expires: _____

14662020000700, 14662020002200, 14662020001300, 14662010003700, 14662010003800,
14662020001900, 14662010003600, 14662010003100, 14662010003000, 14662010003200,
14662020001400, 14662010002200, 14662010004700, 14662010004600, 14662010002700,
14662030000700, 14662040001700, 14662040001800, 14662030000800, 14662040000700,
14662030000900, 14662010001900 south of Storey Blvd., 14662010001700 south of Storey Blvd.

SIGNATURE

Signature: _____
 Printed Name: _____
 Title (if signing for entity or trust): _____
 Date: _____

State of _____)
) ss.
County of _____)

Signature of Notarial Officer

Printed Name of Notarial Officer

Title: Notary Public

My Commission Expires:

14662020001300, 14662010003700, 14662010003800, 14662010003600, 14662010003100,
14662010003000, 14662010003200, 14662020001400, 14662010002200, 14662010004700,
14662010004600, 14662030000700, 14662040001700, 14662040001800, 14662030000800,
14662040000700, 14662040000600, 14662030000900, 14662010001900 south of Storey Blvd.,
14662010001700 south of Storey Blvd.

SIGNATURE

Signature: _____
 Printed Name: _____
 Title (if signing for entity or trust): _____
 Date: _____

State of _____)
) ss.
County of _____)

Signature of Notarial Officer

Printed Name of Notarial Officer

Title: Notary Public

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Storey Blvd.

SIGNATURE

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State of _____)
) ss.
County of _____)

Signature of Notarial Officer

Title: Notary Public

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SIGNATURE

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 Title (if signing for entity or trust): _____
 Date: _____

State of _____)
) ss.
County of _____)

Signature of Notarial Officer

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Title: Notary Public

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State of _____)
) ss.
County of _____)

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SIGNATURE

Signature: _____
 Printed Name: _____
 Title (if signing for entity or trust): _____
 Date: _____

State of _____)
) ss.
County of _____)

Signature of Notarial Officer

Printed Name of Notarial Officer

Title: Notary Public

My Commission Expires:

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14662040000600, 14662030000900, 14662010001900 south of Storey Blvd., 14662010001700 south of
Storey Blvd.

Mailing Address: 2357 Plain View Rd., Cheyenne, WY 82009

☐ Individual Owner ☐ Authorized Representative of Entity/Trust

Date: _____

State of _____)
) ss.
County of _____)

This instrument was acknowledged before me on this _____ day of _____, 2025,
by _____, who produced satisfactory evidence of identity,
☐ as an individual, or ☐ as _____ (title) of
_____ (entity name and type, e.g., Section 20 LLC or the Lester L. and Ann
M. Cole Revocable Living Trust), on behalf of said entity or trust.

My Commission Expires:

Parcel Identification Number(s):

14662010003700

Landowner / Entity Name: Theodore Scott Tietjen

Mailing Address: 2357 Plain View Rd., Cheyenne, WY 82009

SIGNATURE

☐ Individual Owner ☐ Authorized Representative of Entity/Trust

Signature: _____

Printed Name: _____

Title (if signing for entity or trust): _____

Date: _____

ACKNOWLEDGMENT

State of _____)

) ss.

County of _____)

This instrument was acknowledged before me on this ____ day of _____, 2025,
by _____, who produced satisfactory evidence of identity,

☐ as an individual, or ☐ as _____ (title) of

_____ (entity name and type, e.g., Section 20 LLC or the Lester L. and Ann
M. Cole Revocable Living Trust), on behalf of said entity or trust.

Signature of Notarial Officer

Printed Name of Notarial Officer

Title: Notary Public

My Commission Expires: _____